

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

Adopted by the Judicial Council on December 16, 2016,
effective on January 1, 2017

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1 **Rule 3.2200. Application**

2
3 Except as otherwise provided in chapter 2 of the rules in this division, for which govern
4 actions under Public Resources Code sections 21168.6, ~~and~~ 21178–21189.3, and
5 21189.50–21189.57, the rules in this chapter apply to all actions brought under the
6 California Environmental Quality Act (CEQA) as set forth in division 13 of the Public
7 Resources Code.

8
9 *Rule 3.2200 amended effective January 1, 2017; adopted effective July 1, 2014.*

10
11 **Chapter 2. California Environmental Quality Act Proceedings Under Public**
12 **Resources Code Sections 21168.6, ~~and~~ 21178–21189.3, and 21189.50–21189.57**

13
14 **Article 1. General Provisions**

15
16 **Rule 3.2220. Definitions and application**

17
18 **(a) Definitions**

19
20 (1)–(2) * * *

21
22 (3) A “capitol building annex project” means a capitol building annex project as
23 defined by Public Resources Code section 21189.50.

24
25 *(Subd (a) amended effective January 1, 2017.)*

26
27 **(b) Proceedings governed**

28
29 The rules in this chapter govern actions or proceedings brought to attack, review,
30 set aside, void, or annul the certification of the environmental impact report or the
31 grant of any project approvals for the Sacramento arena project, ~~or a leadership~~
32 project, or a capitol building annex project. Except as otherwise provided in Public
33 Resources Code sections 21168.6, ~~and~~ 21178–21189.3, and 21189.50–21189.57
34 and these rules, the provisions of the Public Resources Code and the CEQA
35 Guidelines adopted by the Natural Resources Agency (Cal. Code Regs., tit. 14,
36 § 15000 et seq.) governing judicial actions or proceedings to attack, review, set
37 aside, void, or annul acts or decisions of a public agency on the grounds of
38 noncompliance with the California Environmental Quality Act and the rules of
39 court generally apply in proceedings governed by this rule.

40
41 *(Subd (b) amended effective January 1, 2017.)*
42

1 (c) * * *

2
3 *Rule 3.2220 amended effective January 1, 2017; adopted effective July 1, 2014.*

4
5 **Rule 3.2221. Time**

6
7 (a) * * *

8
9 (b) **Extensions of time by parties**

10
11 If the parties stipulate to extend the time for performing any acts in actions
12 governed by these rules, they are deemed to have agreed that the time for resolving
13 the action may be extended beyond 270 days by the number of days by which the
14 performance of the act has been stipulated to be extended, and to that extent to have
15 waived any objection to noncompliance with the deadlines for completing review
16 stated in Public Resources Code sections 21168.6.6(c)–(d), ~~and 21185,~~ and
17 21189.51. Any such stipulation must be approved by the court.

18
19 *(Subd (b) amended effective January 1, 2017.)*

20
21 (c) **Sanctions for failure to comply with rules**

22
23 If a party fails to comply with any time requirements provided in these rules or
24 ordered by the court, the court may issue an order to show cause as to why one of
25 the following sanctions should not be imposed:

26
27 (1)–(2) * * *

28
29 (3) If the failure to comply is by respondent or a real party in interest, removal of
30 the action from the expedited procedures provided under Public Resources
31 Code sections 21168.6.6(c)–(d), ~~and 21185,~~ and 21189.51, and these rules; or

32
33 (4) * * *

34
35 *(Subd (c) amended effective January 1, 2017.)*

36
37 *Rule 3.2221 amended effective January 1, 2017; adopted effective July 1, 2014.*

38
39 **Rule 3.2222. Filing and service**

40
41 (a)–(c) * * *

1 (d) **Service of petition in action regarding leadership project and capitol building**
2 **annex project**
3

4 If the petition or complaint in an action governed by these rules and relating to a
5 leadership project or a capitol building annex project is not personally served on
6 any respondent public agency, any real party in interest, and the Attorney General
7 within three court days following filing of the petition, the time for filing
8 petitioner's briefs on the merits provided in rule 3.2227(a) and rule 8.702(e) will be
9 decreased by one day for every additional two court days in which service is not
10 completed, unless otherwise ordered by the court for good cause shown.

11
12 *(Subd (d) amended effective January 1, 2017.)*
13

14 (e) * * *

15
16 *Rule 3.2222 amended effective January 1, 2017; adopted effective July 1, 2014.*
17

18 **Rule 3.2223. Petition**
19

20 In addition to any other applicable requirements, the petition must:
21

22 (1) On the first page, directly below the case number, indicate that the matter is
23 either a "Sacramento Arena CEQA Challenge," ~~or~~ an "Environmental
24 Leadership CEQA Challenge," or a "Capitol Building Annex Project";
25

26 (2) State ~~either~~ one of the following:
27

28 (A) * * *
29

30 (B) The project at issue was certified by the Governor as a leadership
31 project under Public Resources Code sections 21182–21184 and is
32 subject to this rule; or
33

34 (C) The project at issue is a capitol building annex project as defined by
35 Public Resources Code section 21189.50 and is subject to this rule;
36

37 (3)–(4) * * *
38

39 *Rule 3.223 amended effective January 1, 2017; adopted effective July 1, 2014.*
40

41 **Rule 4.105. Appearance without deposit of bail in infraction cases**
42

1 (a)–(b) * * *

2
3 (c) **Deposit of bail**

4
5 (1)–(2) * * *

6
7 (3) Courts may require a deposit of bail before trial if the court determines that
8 the defendant is unlikely to appear as ordered without a deposit of bail and
9 the court expressly states the reasons for the finding.

10
11 (4) * * *

12
13 *(Subd (c) amended effective January 1, 2017; previously amended effective December 1,*
14 *2015.)*

15
16 (d) * * *

17
18 (e) **Local Website Information**

19
20 The website for each trial court must include a link to the traffic self-help
21 information posted at: <http://www.courts.ca.gov/selfhelp-traffic.htm>.

22
23 *(Subd (e) adopted effective January 1, 2017.)*

24
25 *Rule 4.105 amended effective January 1, 2017; adopted effective June 8, 2015; previously*
26 *amended December 1, 2015.*

27
28 **Rule 4.106. Failure to appear or failure to pay for a Notice to Appear issued for an**
29 **infraction offense**

30
31 (a) **Application**

32
33 This rule applies to infraction offenses for which the defendant has received a
34 written notice to appear and has failed to appear or failed to pay.

35
36 (b) **Definitions**

37
38 As used in this rule, “failure to appear” and “failure to pay” mean failure to appear
39 and failure to pay as defined in section 1214.1(a).

40
41 (c) **Procedure for consideration of good cause for failure to appear or pay**

42

- (1) A notice of a civil assessment under section 1214.1(b) must inform the defendant of his or her right to petition that the civil assessment be vacated for good cause and must include information about the process for vacating or reducing the assessment.
- (2) When a notice of civil assessment is given, a defendant may, within the time specified in the notice, move by written petition to vacate or reduce the assessment.
- (3) When a court imposes a civil assessment for failure to appear or pay, the defendant may petition that the court vacate or reduce the civil assessment without paying any bail, fines, penalties, fees, or assessments.
- (4) A petition to vacate an assessment does not stay the operation of any order requiring the payment of bail, fines, penalties, fees, or assessment unless specifically ordered by the court.
- (5) The court must vacate the assessment upon a showing of good cause under section 1214.1(b)(1) for failure to appear or failure to pay.
- (6) If the defendant does not establish good cause, the court may still exercise its discretion under section 1214.1(a) to reconsider:
 - (A) Whether a civil assessment should be imposed; and
 - (B) If so, the amount of the assessment.
- (7) In exercising its discretion, the court may consider such factors as a defendant's due diligence in appearing or paying after notice of the assessment has been given under section 1214.1(b)(1) and the defendant's financial circumstances.

(d) Procedure for unpaid bail referred to collection as delinquent debt in unadjudicated cases

- (1) When a case has not been adjudicated and a court refers it to a comprehensive collection program as provided in section 1463.007(b)(1) as delinquent debt, the defendant may schedule a hearing for adjudication of the underlying charge(s) without payment of the bail amount.
- (2) The defendant may request an appearance date to adjudicate the underlying charges by written petition or alternative method provided by the court.

1 Alternatively, the defendant may request or the court may direct a court
2 appearance.

- 3
4 (3) A court may require a deposit of bail before adjudication of the underlying
5 charges if the court finds that the defendant is unlikely to appear as ordered
6 without a deposit of bail and the court expressly states the reasons for the
7 finding. The court must not require payment of the civil assessment before
8 adjudication.

9
10 **(e) Procedure for failure to pay or make a payment under an installment payment**
11 **plan**

- 12
13 (1) When a defendant fails to pay a fine or make a payment under an installment
14 plan as provided in section 1205 or Vehicle Code sections 40510.5, 42003, or
15 42007, the court must permit the defendant to appear by written petition to
16 modify the payment terms. Alternatively, the defendant may request or the
17 court may direct a court appearance.

- 18
19 (2) The court must not require payment of bail, fines, penalties, fees, or
20 assessments to consider the petition.

- 21
22 (3) The petition to modify the payment terms does not stay the operation of any
23 order requiring the payment of bail, fines, penalties, fees, or assessments
24 unless specifically ordered by the court.

- 25
26 (4) If the defendant petitions to modify the payment terms based on an inability
27 to pay, the procedures stated in rule 4.335 apply.

- 28
29 (5) If the petition to modify the payment terms is not based on an inability to
30 pay, the court may deny the defendant's request to modify the payment terms
31 and order no further proceedings if the court determines that:

32
33 (A) An unreasonable amount of time has passed; or

34
35 (B) The defendant has made an unreasonable number of requests to modify
36 the payment terms.

37
38 **(f) Procedure after a trial by written declaration in absentia for a traffic**
39 **infraction**

40
41 When the court issues a judgment under Vehicle Code section 40903 and a
42 defendant requests a trial de novo within the time permitted, courts may require the
43 defendant to deposit bail.

1
2 **(g) Procedure for referring a defendant to the Department of Motor Vehicles**
3 **(DMV) for license suspension for failure to pay a fine**
4

5 Before a court may notify the DMV under Vehicle Code sections 40509(b) or
6 40509.5(b) that a defendant has failed to pay a fine or an installment of bail, the
7 court must provide the defendant with notice of and an opportunity to be heard on
8 the inability to pay. This notice may be provided on the notice required in rule
9 4.107, the civil assessment notice, or any other notice provided to the defendant.
10

11 *Rule 4.106 adopted effective January 1, 2017*
12

13 **Advisory Committee Comment**
14

15 **Subdivision (a).** The rule is intended to apply only to an infraction offense for which the
16 defendant (1) has received a written notice to appear and (2) has failed to appear by the
17 appearance date or an approved extension of that date or has failed to pay as required.
18

19 **Subdivision (c)(3).** Circumstances that indicate good cause may include, but are not limited to,
20 the defendant's hospitalization, incapacitation, or incarceration; military duty required of the
21 defendant; death or hospitalization of the defendant's dependent or immediate family member;
22 caregiver responsibility for a sick or disabled dependent or immediate family member of the
23 defendant; or an extraordinary reason, beyond the defendant's control, that prevented the
24 defendant from making an appearance or payment on or before the date listed on the notice to
25 appear.
26

27 **Subdivision (e)(1).** A court may exercise its discretion to deny a defendant's request to modify
28 the payment terms. If the court chooses to grant the defendant's request, the court may modify the
29 payment terms by reducing or suspending the base fine, lowering the payments, converting the
30 remaining balance to community service, or otherwise modifying the payment terms as the court
31 sees fit.
32

33 **Subdivision (g).** A hearing is not required unless requested by the defendant or directed by the
34 court.
35

36 **Rule 4.107. Mandatory reminder notice—traffic procedures**
37

38 **(a) Mandatory reminder notice**
39

40 (1) Each court must send a reminder notice to the address shown on the *Notice to*
41 *Appear*, unless the defendant otherwise notifies the court of a different
42 address.
43

1 (2) The court may satisfy the requirement in paragraph (1) by sending the notice
2 electronically, including by e-mail or text message, to the defendant. By
3 providing an electronic address or number to the court or to a law
4 enforcement officer at the time of signing the promise to appear, a defendant
5 consents to receiving the reminder notice electronically at that electronic
6 address or number.

7
8 (3) The failure to receive a reminder notice does not relieve the defendant of the
9 obligation to appear by the date stated in the *Notice to Appear*.

10
11 **(b) Minimum information in reminder notice**

12
13 In addition to information obtained from the *Notice to Appear*, the reminder notice
14 must contain at least the following information:

15
16 (1) An appearance date and location;

17
18 (2) Whether a court appearance is mandatory or optional;

19
20 (3) The total bail amount and payment options;

21
22 (4) The notice about traffic school required under Vehicle Code section 42007, if
23 applicable;

24
25 (5) Notice that a traffic violator school will charge a fee in addition to the
26 administrative fee charged by the court;

27
28 (6) The potential consequences for failure to appear, including a driver's license
29 hold or suspension, a civil assessment of up to \$300, a new charge for failure
30 to appear, a warrant of arrest, or some combination of these consequences, if
31 applicable;

32
33 (7) The potential consequences for failure to pay a fine, including a driver's
34 license hold or suspension, a civil assessment of up to \$300, a new charge for
35 failure to pay a fine, a warrant of arrest, or some combination of these
36 consequences, if applicable;

37
38 (8) The right to request an ability-to-pay determination;

39
40 (9) Notice of the option to pay bail through community service (if available) and
41 installment plans (if available);

42
43 (10) Contact information for the court, including the court's website;

(11) Information regarding trial by declaration, informal trial (if available), and telephone or website scheduling options (if available); and

(12) Correction requirements and procedures for correctable violations.

Rule 4.107 adopted effective January 1, 2017

Advisory Committee Comment

Subdivision (a)(2). The court may provide a means for obtaining the defendant's consent and designated electronic address or number on its local website. Because notices to appear state the website address for the superior court in each county, this location may increase the number of defendants who become aware and take advantage of this option. To obtain the defendant's electronic address or number at the time of signing the promise to appear, the court may need to collaborate with local law enforcement agencies.

Subdivision (b). While not required, some local court websites may provide information about local court processes and local forms related to the information on the reminder notice. If in electronic form, the reminder notice should include direct links to any information and forms on the local court website. If in paper form, the reminder notice may include the website addresses for any information and forms on the local court website.

Rule 4.108. Installment Payment Agreements

(a) Online interface for installment payment agreements

(1) A court may use an online interface to enter into installment payment agreements with traffic infraction defendants under Vehicle Code sections 40510.5 and 42007.

(2) Before entering into an installment payment agreement, an online interface must provide defendants with the Advisement of Rights stated in Attachment 1 of *Online Agreement to Pay and Forfeit Bail in Installments* (form TR-300 (online)), and *Online Agreement to Pay Traffic Violator School Fees in Installments* (form TR-310 (online)).

(b) Alternative mandatory forms

(1) The Judicial Council has adopted the following alternative mandatory forms for use in entering into installment payment agreements under Vehicle Code sections 40510.5 and 42007:

1 (A) Agreement to Pay and Forfeit Bail in Installments (form TR-300); and
2 Online Agreement to Pay and Forfeit Bail in Installments (form TR-
3 300 (online)); and
4

5 (B) Agreement to Pay Traffic Violator School Fees in Installments (form
6 TR-310); and Online Agreement to Pay Traffic Violator School Fees in
7 Installments (form TR-310 (online)).
8

9 (2) Forms TR-300 (online) and TR-310 (online) may be used only in online
10 interfaces for installment payment agreements as provided in subdivision (a).
11

12 *Rule 4.108 adopted effective January 1, 2017*
13

14 **Rule 4.335. Ability-to-pay determinations for infraction offenses**
15

16 **(a) Application**
17

18 This rule applies to any infraction offense for which the defendant has received a
19 written *Notice to Appear*.
20

21 **(b) Required notice regarding an ability-to-pay determination**
22

23 Courts must provide defendants with notice of their right to request an ability-to-
24 pay determination and make available instructions or other materials for requesting
25 an ability-to-pay determination.
26

27 **(c) Procedure for determining ability to pay**
28

29 (1) The court, on request of a defendant, must consider the defendant's ability to
30 pay.
31

32 (2) A defendant may request an ability-to-pay determination at adjudication, or
33 while the judgment remains unpaid, including when a case is delinquent or
34 has been referred to a comprehensive collection program.
35

36 (3) The court must permit a defendant to make this request by written petition
37 unless the court directs a court appearance. The request must include any
38 information or documentation the defendant wishes the court to consider in
39 connection with the determination. The judicial officer has the discretion to
40 conduct the review on the written record or to order a hearing.
41

42 (4) Based on the ability-to-pay determination, the court may exercise its
43 discretion to:

1
2 (A) Provide for payment on an installment plan (if available);

3
4 (B) Allow the defendant to complete community service in lieu of paying
5 the total fine (if available);

6
7 (C) Suspend the fine in whole or in part;

8
9 (D) Offer an alternative disposition.

10
11 (5) A defendant ordered to pay on an installment plan or to complete community
12 service may request to have an ability-to-pay determination at any time
13 during the pendency of the judgment.

14
15 (6) If a defendant has already had an ability-to-pay determination in the case, a
16 defendant may request a subsequent ability-to-pay determination only based
17 on changed circumstances.

18
19 *Rule 4.335 adopted effective January 1, 2017*

20
21 **Advisory Committee Comment**

22
23 **Subdivision (b).** This notice may be provided on the notice required by rule 4.107, the notice of
24 any civil assessment under section 1214.1, a court's website, or any other notice provided to the
25 defendant.

26
27 **Subdivision(c)(1).** In determining the defendant's ability to pay, the court should take into
28 account factors including: (1) receipt of public benefits under Supplemental Security Income
29 (SSI), State Supplementary Payment (SSP), California Work Opportunity and Responsibility to
30 Kids (CalWORKS), Federal Tribal Temporary Assistance for Needy Families (Tribal TANF),
31 Supplemental Nutrition Assistance Program, California Food Assistance Program, County Relief,
32 General Relief (GR), General Assistance (GA), Cash Assistance Program for Aged, Blind, and
33 Disabled Legal Immigrants (CAPI), In Home Supportive Services (IHSS), or Medi-Cal; and (2) a
34 monthly income of 125 percent or less of the current poverty guidelines, updated periodically in
35 the Federal Register by the U.S. Department of Health and Human Services under 42 U.S.C. §
36 9902(2).

37
38 **Subdivision (c)(4).** The amount and manner of paying the total fine must be reasonable and
39 compatible with the defendant's financial ability. Even if the defendant has not demonstrated an
40 inability to pay, the court may still exercise discretion. Regardless of whether the defendant has
41 demonstrated an inability to pay, the court in exercising its discretion under this subdivision may
42 consider the severity of the offense, among other factors. While the base fine may be suspended

1 in whole or in part in the court's discretion, this subdivision is not intended to affect the
2 imposition of any mandatory fees.

3
4 **Rule 5.24. Joinder of persons claiming interest**

5
6 A person who claims or controls an interest in any matter subject to disposition in the
7 proceeding may be joined as a party to the family law case only as provided in this
8 chapter.

9
10 **(a)–(d) * * ***

11
12 **(e) Court order on joinder**

13
14 **(1) *Mandatory joinder***

15
16 **(A)** The court must order that a person be joined as a party to the
17 proceeding if ~~any person~~ the court discovers that person has physical
18 custody or claims custody or visitation rights with respect to any minor
19 child of the marriage, domestic partnership, or to any minor child of the
20 relationship.

21
22 **(B) * * ***

23
24 **(2)–(3) * * ***

25
26 *(Subd (e) amended effective January 1, 2017.)*

27
28 *Rule 5.24 amended effective January 1, 2017; adopted effective January 1, 2013.*

29
30 **Rule 5.340. Judicial education for child support commissioners**

31
32 Every commissioner whose principal judicial assignment is to hear child support matters
33 must attend the following judicial education programs:

34
35 **(1)–(3) * * ***

36
37 **(4) *Other judicial education***

38
39 The requirements of this rule are in addition to and not in lieu of the requirements
40 of rule ~~10.501(e)~~ 10.462.

1 *Rule 5.340 amended effective January 1, 2017; adopted as rule 1280.8 effective July 1, 1999;*
2 *previously amended and renumbered effective January 1, 2003; previously amended effective*
3 *January 1, 2007.*

4
5 **Rule 8.304. Filing the appeal; certificate of probable cause**

6
7 **(a)–(c) * * ***

8
9 **Advisory Committee Comment**

10
11 **Subdivision (a).** Penal Code section 1235(b) provides that an appeal from a judgment or
12 appealable order in a “felony case” is taken to the Court of Appeal, and Penal Code section 691(f)
13 defines “felony case” to mean “a criminal action in which a felony is charged. . . .” Rule
14 8.304(a)(2) makes it clear that a “felony case” is an action in which a felony is charged *regardless*
15 *of the outcome of the action.* Thus the question whether to file a notice of appeal under this rule or
16 under the rules governing appeals to the appellate division of the superior court (rule ~~8.700~~ 8.800
17 et seq.) is answered simply by examining the accusatory pleading: if that document charged the
18 defendant with at least one count of felony (as defined in Penal Code, section 17(a)), the Court of
19 Appeal has appellate jurisdiction and the appeal must be taken under this rule *even if the*
20 *prosecution did not result in a punishment of imprisonment in a state prison.*

21
22 * * *

23
24 **Rule 8.528. Disposition**

25
26 **(a) * * ***

27
28 **(b) Dismissal of review**

29
30 (1)–(2) * * *

31
32 (3) ~~After~~ An order dismissing review, does not affect the publication status of the
33 Court of Appeal opinion remains unpublished unless the Supreme Court
34 orders otherwise.

35
36 *(Subd (b) amended effective January 1, 2017.)*

37
38 **(c)–(f) * * ***

39
40 *Rule 8.528 amended effective January 1, 2017; repealed and adopted as rule 29.3 effective*
41 *January 1, 2003; previously amended and renumbered as rule 8.528 effective January 1, 2007.*
42

1 **Chapter 11. Review of California Environmental Quality Act Cases Under Public**
2 **Resources Code Sections 21168.6.6, ~~and 21178–21189.3,~~ and 21189.50–21189.57.**

3
4 **Rule 8.700. Definitions and application**

5
6 **(a) Definitions**

7
8 As used in this chapter:

9
10 (1)–(2) * * *

11
12 (3) A “capitol building annex project” means a capitol building annex project as
13 defined by Public Resources Code section 21189.50.

14
15 *(Subd (a) amended effective January 1, 2017.)*

16
17 **(b) Proceedings governed**

18
19 The rules in this chapter govern appeals and writ proceedings in the Court of
20 Appeal to review a superior court judgment or order in an action or proceeding
21 brought to attack, review, set aside, void, or annul the certification of the
22 environmental impact report or the granting of any project approvals for an
23 environmental leadership development project, ~~or~~ the Sacramento arena project, or
24 a capitol building annex project.

25
26 *(Subd (b) amended effective January 1, 2017.)*

27
28 *Rule 8.700 amended effective January 1, 2017; adopted effective July 1, 2014.*

29
30 **Rule 8.701. Filing and service**

31
32 **(a) * * ***

33
34 **(b) Electronic filing and service**

35
36 ~~Notwithstanding rules 8.71(a) and 8.73, the court may order that:~~

37
38 (1) In accordance with rule 8.71, all parties except self-represented parties are
39 required to file all documents ~~be filed electronically~~ except as otherwise
40 provided by these rules, the local rules of the reviewing court, or court order;.
41 Notwithstanding rule 8.71(b), a court may order a self-represented party to
42 file documents electronically.
43

1 (2) All documents must be served electronically on parties who have ~~stipulated~~
2 consented to electronic service or who are otherwise required by law or court
3 order to accept electronic service. All parties represented by counsel are
4 deemed to have ~~stipulated~~ consented to electronic service. All self-
5 represented parties may so ~~stipulate~~ consent.
6

7 *(Subd (b) amended effective January 1, 2017.)*
8

9 (c) * * *

10
11 *Rule 8.701 amended effective January 1, 2017; adopted effective July 1, 2014.*
12

13 **Rule 8.702. Appeals**
14

15 (a) * * *

16
17 (b) **Notice of appeal**
18

19 (1) * * *

20
21 (2) *Contents of notice of appeal*
22

23 The notice of appeal must:
24

25 (A) * * *

26
27 (B) Indicate whether the judgment or order pertains to the Sacramento
28 arena project, ~~or a leadership project,~~ or a capitol building annex
29 project; and
30

31 (C) * * *

32
33 *(Subd (b) amended effective January 1, 2017; previously amended effective January 1,*
34 *2016.)*
35

36 (c)–(e) * * *

37
38 (f) **Briefing**
39

40 (1)–(3) * * *

41
42 (4) *Extensions of time to file briefs*
43

1 If the parties stipulate to extend the time to file a brief under rule 8.212(b),
2 they are deemed to have agreed that the time for resolving the action may be
3 extended beyond 270 days by the number of days by which the parties
4 stipulated to extend the time for filing the brief and, to that extent, to have
5 waived any objection to noncompliance with the deadlines for completing
6 review stated in Public Resources Code sections 21168.6.6(c)–(d), ~~and~~
7 21185, and 21189.51 for the duration of the stipulated extension.
8

9 (5) * * *

10
11 *(Subd (f) amended effective January 1, 2017.)*
12

13 (g) * * *

14
15 *Rule 8.702 amended effective January 1, 2017; adopted effective July 1, 2014; previously*
16 *amended effective January 1, 2016.*
17

18 **Advisory Committee Comment**

19

20 **Subdivision (b).** It is very important to note that the time period to file a notice of appeal under
21 this rule is the same time period for filing most postjudgment motions in a case regarding the
22 Sacramento arena project, and in a case regarding a leadership project or capitol building annex
23 project, the deadline for filing a notice of appeal may be earlier than the deadline for filing a
24 motion for a new trial, a motion for reconsideration, or a motion to vacate the judgment.
25

26 **Rule 8.703. Writ proceedings**

27

28 (a) * * *

29
30 (b) **Petition**

31
32 (1) * * *

33
34 (2) *Contents of petition*
35

36 In addition to any other applicable requirements, the petition must:

37
38 (A) * * *

39
40 (B) Indicate whether the judgment or order pertains to the Sacramento
41 arena project, ~~or a leadership project,~~ or a capitol building annex
42 project; and
43

1 (C) * * *

2
3 *(Subd (b) amended effective January 1, 2017; previously amended effective January 1,*
4 *2016.)*

5
6 *Rule 8.703 amended effective January 1 2017; adopted effective July 1, 2014; previously*
7 *amended effective January 1 2016.*

8
9 **Rule 10.701. Qualifications and education of subordinate judicial officers**

10
11 **(a)–(b) * * ***

12
13 **(c) Education**

14
15 A subordinate judicial officer must comply with the education requirements of any
16 position to which he or she is assigned, even if it is not his or her principal
17 assignment. Such requirements include the following, as applicable: rules 5.30,
18 5.340, and ~~10.501~~ 10.462 of the California Rules of Court, and Welfare and
19 Institutions Code section 304.7.

20
21 *(Subd (c) amended effective January 1, 2017; previously amended effective January 1,*
22 *2007.)*

23
24 **(d) * * ***

25
26 *Rule 10.701 amended effective January 1, 2017; adopted as rule 6.660 effective January 1, 2003;*
27 *previously amended and renumbered effective January 1, 2007; previously amended effective*
28 *July 1, 2008.*

29
30 **Standards of Judicial Administration**

31
32 **Title 4. Standards for Criminal Cases**

33
34 **~~Standard 4.41. Courtesy notice—traffic procedures~~**

35
36 **~~(a) Mailed courtesy notice~~**

37
38 ~~Each court should promptly mail a “courtesy notice” to the address shown on the~~
39 ~~Notice to Appear. The date of mailing should allow for the plea by mail option in~~
40 ~~infraction cases.~~

41
42 **~~(b) Minimum information in courtesy notice~~**

43

1 ~~In addition to information obtained from the Notice to Appear, the courtesy notice~~
2 ~~should contain at least the following information:~~

- 3
- 4 ~~(1) An appearance date, time, and location;~~
 - 5
 - 6 ~~(2) Whether a court appearance is mandatory or optional;~~
 - 7
 - 8 ~~(3) The total bail amount if forfeitable;~~
 - 9
 - 10 ~~(4) The procedure required for remitting bail;~~
 - 11
 - 12 ~~(5) The plea by mail option in infraction cases and the number of appearances~~
13 ~~required where trial is requested;~~
 - 14
 - 15 ~~(6) The consequences of failure to appear; and~~
 - 16
 - 17 ~~(7) A telephone number to call for additional information.~~

18

19 **(e) Additional information in courtesy notice**

20

21 ~~Courts should provide additional information in the courtesy notice, as appropriate,~~
22 ~~including the following:~~

- 23
- 24 ~~(1) Informal trial, trial by declaration, traffic violators' school, and telephone~~
25 ~~scheduling options; and~~
 - 26
 - 27 ~~(2) Correction requirements and procedures.~~
- 28